

24STCV10562 24STCV10562

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-09-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C09%2F14%2F2026

Source SHA-256: 30b437ef050c6ba0f7e131b27d8971d38f048e91808c943a31bba84ee2449df3

Case Number: 24STCV10562 Hearing Date: September 14, 2026 Dept: 529

JAIME RODRIGUEZ VS FCA US LLC

PLAINTIFF'S MOTION FOR PAYMENT OF
ATTORNEYS' FEES AND REIMBURSEMENT OF COSTS AND EXPENSES

Date of Hearing: September

14, 2026 Trial

Date: None

set.

Department: 529 Case No.: 24STCV10562

Moving Party: Plaintiff

Jaime Rodriguez

Responding Party: Defendant

FCA US LLC

BACKGROUND

On April 26, 2024, Plaintiff Jaime

Rodriguez filed a complaint against FCA US LLC for violation of the

Song-Beverly Consumer Warranty Act. Plaintiff purchased a 2022 Dodge Charger

vehicle from Chrysler Jeep Dodge Ram in Indio, California. Plaintiff alleges

the subject vehicle suffered from defects including engine malfunctions, and

electrical defects.

On April 6, 2026, the parties filed a

Notice of Settlement of Entire Case.

[TENTATIVE] RULING

Plaintiff Jamie Rodriguez's Motion for Payment of Attorneys' Fees and Reimbursement of Costs and Expenses is GRANTED, in the reduced amount.

DISCUSSION

Plaintiff Jamie Rodriguez moves this court for an award of attorney fees and costs against Defendant in the amount of \$55,810.86, including a multiplier of 0.2.

Pursuant to the Song-Beverly Act, Civil Code section 1794(d), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Plaintiff seeks \$47,173.26 in attorneys' fees and costs pursuant to Civil Code section 1794(d) plus a 0.2x fee enhancement for a total of \$55,810.86. Plaintiff seeks this amount based on 74.7 hours of work at the billing rate of \$485/hr in 2025 and \$515/hr in 2026 for Christopher Danna, \$600/hr in 2025 and \$625/hr in 2026 for Aaron Fhima, and \$430/hr in 2024 and \$485/hr in 2025 for Jansher Rasa.

In opposition, Defendant argues Plaintiff's counsel's billing practices are abusive of the fee shifting provision of the Song-Beverly Act. Defendant first contends the court should apply the rates from the Real Rate Report, which caps the partner rate at \$550/hr and the associate rate at \$450.00/hr. Defendant also contends the rate history by counsel raises concerns as there has been an increase in rates of approximately 78.6% in the last six years.

The court finds the hourly rates of Plaintiff's counsel reasonable. The range of rates charged in this matter are appropriate given each attorney's relative experience and

qualifications.

Defendant next argues the court should reduce the fee award by subtracting several duplicative and unreasonable entries including Plaintiff's counsel initial flat fee of \$3,900.00, block billing of \$1,376.00, \$1,067.00 for summarizing deposition transcript, \$3,492 for drafting the motion to compel, and the like. (See Opp. p. 6-8.)

The court finds some of the fees unreasonable. First, the anticipated 9 hours billed for the opposition, attending the hearing and preparing an opposition to a motion to tax costs as well as the 1 hour spent preparing the memorandum of costs is excessive. The court reduces the reply and attending the hearing to two hours, or \$1,030.00. The court also reduces the time spent preparing the memorandum of costs to .5 hours or \$257.50. Moreover, Plaintiff spent 3 hours preparing nearly identical 6 subpoenas. The court reduces the amount to \$970.00. The court also reduces the 7.2 hours billed for reviewing, preparing and drafting the motion to compel PMK and related work to 4 hours or \$1,940.00.

The court finds the rest of the fees reasonably incurred. For example, Defendant identifies only one entry of the purported block billing. However, the entry has not "prevent[ed] [the court] from discerning which tasks are compensable and which are not." (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1010.) Similarly, Defendant does not explain sufficiently how the flat fee of \$3,900.00 was unreasonably incurred.

Based on the foregoing, \$2,294.50 will be deducted from the total, totaling \$36,258.50. The total anticipated work brings the total to \$37,288.50.

As for the multiplier, the court declines to award one. This was a standard lemon law case. Counsel's skill and contingency risk are reflected in the reasonable hourly rates described above.

Memorandum of Costs

Plaintiff seeks \$3,964.60 in costs, including the following: (1) \$581.00 in filing fees and motion fees; (2) \$150.00 in jury fees; (3) \$2,404.31 in deposition costs; (4) \$563.08 in service of process fees and (5) \$266.21 in fees for electronic filing or service.

Defendant does not oppose the costs.

Based on the foregoing, the motion for attorney fees and costs is GRANTED, in the reduced amount of \$37,288.50 in attorney fees and \$3,964.60 in costs, for a total of \$41,253.10.